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253
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Report No. 20

15 May 1947

FLICK CASE - REPORT NO. 20

DAILY TRIAL REPORT - MILITARY TRIBUNAL NO. 4 - FLICK CASE.

EVIDENCE: Mr. Lyon commenced the presentation of the document books pertaining to the Petschek aryanization matter. Twenty documents were introduced into evidence from Document Book 10-A, the session having been cut short about four o'clock by some sort of electrical disturbance.

LAW AND PROCEDURE: Dr. Dix, counsel for Flick, objected to the introduction into evidence of an unsigned, undated memorandum which was stated to be a supplement to some other memorandum or document as being insufficiently related to any of the defendants to have any probative value. The objection was overruled after a statement by the prosecution that internal evidence in the document taken together with other documents already introduced and to be subsequently introduced would sufficiently establish the document as having been written by one or the three defendants charged, Flick, Kaletsch or Steinbrinck. The prosecution added that when all the evidence had been introduced with respect to the Petschek matter, it would be overwhelmingly clear that all thres of the defendants charged worked in very close cooperation with daily knowledge of what the others were doing in the Petschek matter and that this working relationship was so close that the act of one was in legal effect the act of all three. Defense counsel Dix then asked for clarification of the nature of the charges made under Count 3 of the indictment, pointing out that collective action was not charged in the form of a separate conspiracy count. Prosecution stated that while there was no charge of conspiracy, there was language in the indictment sufficient to cover concerted action of any type reached by Control Council Law No. 10 and that in the opinion of the prosecution this language of Control Council Law No. 10 was more than broad enough to cover any types of concerted action that would ordinarily be comprised within the concept of conspiracy. The prosecution pointed to such language in Control Council Law No. 10. For example, "taking a consenting part" and "being connected with plans and enterprises". The tribunal suggested in the interest of expediting the proceedings it would be best to postpone any further discussion or agrument of this matter to a future time, presumably at the end of the presentation of evidence by both sides.

In connection with several documents the defense pointed out that they were originals which had quite obviously not been delivered to government officials such as Goering who were intimately connected with matters discussed in the documents. The court admitted the